

Risk Review

By: BA
Date: 7-15-14

Approved as to
form only:

D. White
Date: 7/18/2014

CONTRACT NO. _____

THIS AGREEMENT, made and entered into this _____ day of _____, 2014, by and between the City of Cheyenne, Wyoming, a municipal corporation organized under the laws of the State of Wyoming, acting by and through its political subdivision, the Cheyenne Police Department, hereinafter referred to as the "Department," whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and the Laramie County School District No. 1, hereinafter referred to as the "District," whose address is 2810 House Avenue, Cheyenne, Wyoming 82001.

WITNESSETH:

WHEREAS, the District has identified the need for police services at various schools and school-related events under its control and supervision; and

WHEREAS, the Department is a municipal police agency engaged in providing police services to the City of Cheyenne; and

WHEREAS, the District desires to obtain the police services of the Department, and the Department desires to provide said services.

NOW, THEREFORE, IN CONSIDERATION of the mutual promises and covenants hereinafter contained, the parties agree as follows:

1. This Agreement shall be in effect from August 26, 2014, through June 5, 2015. The Department shall have no obligation under this Agreement to provide police services to the District at any school location during any time that such school location is closed by official action of the District. Except as provided in this Agreement, the Department shall have no obligation to provide police services to the District, as described in this agreement, beyond the hours provided for in this agreement.

2. The Department shall appoint a representative who shall be responsible for managing and coordinating the Department's performance under this Agreement, and shall identify this representative to the District by name and telephone number.

3. The Department agrees to provide routine police services to the District under the terms and conditions herein contained. The duties assumed by the Department under this Agreement are duties owed generally to the public, and by entering this Agreement, the Department does not assume any other duty to the District, nor does the Department assume any duty to any particular individual. The parties agree that this Agreement does not create an agency relationship between the Department and the District, and no representations of any kind, type or nature made by one party shall be binding upon or create a duty in the other party.

4. In return for police services to be provided by the Department pursuant to this Agreement, the District agrees to pay to the City Treasurer the sum of Four Hundred Fifty-Three Thousand, Seven Hundred Thirty-Two Dollars and One Cent (\$453,732.01), which is equal to 75% of base salary and benefits for seven officers and one sergeant. Said sum shall be paid within thirty (30) days after the execution of this Agreement. In addition, the District shall reimburse the Department for overtime costs incurred by the Department in the performance of services described in Paragraph 11.b., of this Agreement at the rate of Forty Dollars (\$40.00) per hour.

5. All costs incurred by the Department in the performance of duties under this Agreement shall be paid by the Department, including salaries and wages, and the District shall reimburse the Department for all such costs up to the maximum of Four Hundred Fifty-Three Thousand, Seven Hundred Thirty-Two Dollars and One Cent (\$453,732.01) set forth in Paragraph 4 of this Agreement, except that overtime costs for services provided under Paragraph 11.b., of this Agreement shall be in addition to the maximum set forth in Paragraph 4.

6. Police officers assigned to provide services under this Agreement shall, at all times, be employees of the City of Cheyenne Police Department. The Department shall comply with all federal, state, and local laws and ordinances regarding the employment relationship between the City of Cheyenne and police officers assigned to provide services under this Agreement.

7. The District and Department are aware that each party to this Agreement is subject to the supervision of separately elected political entities. Each party to this Agreement obtains funding which is subject to annual budget approval. Each party hereto shall notify the other immediately if a party's future fiscal year funding for this Agreement is curtailed or eliminated.

8. Each party hereto shall be responsible for its own negligence and the negligence of its agents, employees, representatives and other personnel. The Department is a participant in the Wyoming Association of Risk Management (WARM) and is insured by WARM to the limits described in the Wyoming Governmental Claims Act, Wyo. Stat. §§ 1-39-101 through 1-39-120 (1988), *as amended*. The City and the District do not waive any applicable defenses and expressly reserve the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. 1-39-101, et seq. for any claims arising out of performance of this agreement.

9. The Department personnel provided by the Department pursuant to this Agreement shall be directly supervised by the Department's Patrol Commander. Department personnel provided pursuant to this Agreement will coordinate their activities with the principal of each of the District's schools identified herein. Department personnel provided pursuant to this Agreement will be subject to other assignments in times of emergencies, as determined by the Department. In selecting personnel to provide services pursuant to this Agreement, the Department shall consider each officer's interest in the assignment, ability to deal with the District's students, and any special training which may have been received.

10. Department personnel providing services pursuant to this Agreement shall conduct themselves as police officers and shall at all times follow the policies and procedures of the Department.

11. The Department shall provide routine police services to the District at the following locations and at the following times:

- a. Seven officers and one Sergeant stationed variously at High Schools, Junior High Schools, and Elementary Schools within the District as may be determined by mutual agreement between the Department and the District. Officers assigned to these locations shall perform routine police services during regular school hours. Officers will also be involved with current programs the District is promoting for drug/alcohol awareness and anti-bullying as may be determined by mutual agreement between the Department and the District.

- b. Officers at athletic events, school dances, and other special events as may be determined by mutual agreement between the Department and the District, subject to the availability of Department personnel.
- c. If any school officer is absent for ten (10) or more consecutive school days, the Department will provide a replacement officer to cover the officer's duty assignment.
- d. Except as provided by Paragraph 9 of this Agreement, police officers assigned to provide services under this Agreement shall devote substantially all of their working time to the District during regular school hours and at such other times as may be determined by mutual agreement between the Department and the District.

12. This Agreement shall not be modified or altered unless mutually agreed upon by the parties in writing.

13. This Agreement contains the entire understanding of the parties. There are no understandings between the parties, written or otherwise, not contained herein. Each party acknowledges that they have consulted with, or have had the opportunity to consult with, legal counsel regarding this Agreement.

14. If any provision, section, subsection, sentence, clause or phrase of this Agreement is invalidated by any court of competent jurisdiction, such a holding shall not affect the validity of the remainder of the Agreement, which shall continue in full force and effect.

IN WITNESS WHEREOF, the parties hereto have caused this instrument to be executed as of the day and year first above written.

CITY OF CHEYENNE
BY:

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

LARAMIE COUNTY SCHOOL DISTRICT NO. 1
BY:

Title: Facility & Risk Manager